

U.O.Note No.598/SC.E3/99-1, Genl.Admn. (SC.E) Dept., dt.26.02.1999 regarding Vigilance Commission - consultation at lower than Government level to be ensured.

Subject Heading : Vigilance Commission - consultation by disciplinary authorities at lower level than Government.

- Ref : 1. G.O.Ms.No.421, G.A.(SC.D) dept., dt.03.08.93.
2. Procedural instructions of A.P. Vigilance Commission communicated through Lr.No.66/VC.A2/93-3, dt.10.10.1994.
3. U.O.Note No. 2670/SC.E3/98-1, GAD, dt.02.12.1998.
4. From the Vigilance Commissioner, A.P., Hyderabad, D.O.Lr.No.163/VC.E1/94-12, dt.18.02.1999 addressed to the Chief Secretary to Government.

In the U.O. Note third cited, while inviting attention to the orders issued in the G.O. first cited, all Departments of Secretariat were requested, once again, to obtain the advice of the Vigilance Commissioner without fail after conclusion of the departmental inquiries i.e. after receipt of the report of the Inquiring Authority and the representation of the Government Servant / Member of Service thereon. Thereafter, considering the advice of the Vigilance Commissioner vis-a-vis the findings of the Inquiring Authority and the representation of the Government Servant / Member of Service thereon, the Government Departments were requested to obtain the orders of the concerned competent authority either for imposition of any of the penalties as stipulated under the relevant disciplinary rules or otherwise.

2. The Departments of Secretariat were also requested to communicate the above instructions to all the subordinate offices and Undertakings under their administrative control for their guidance and compliance.

3. In spite of the above instructions, it has come to the notice of the Government that Vigilance Commissioner is being consulted by and large only by Secretariat Departments where the disciplinary authority is the Government, and in cases where the disciplinary authority is the Head of the Department some cases are being referred to the Vigilance Commissioner and many other cases are not being referred, to the Commission at all. Where the disciplinary authority is at the Regional / District level, the Secretariat Departments are not ensuring consultation with the Vigilance Commission at all. It has been brought to the notice of the Government, that in a case where the disciplinary authority is the District Authority, final orders were issued in the case by the District Authority without consulting the Vigilance Commission through the concerned administrative Department in the Secretariat.

4. All the Departments of Secretariat are therefore, once again, requested to communicate the instructions issued the reference third cited, to the Heads of Departments, Regional / District and subordinate offices and Undertakings under their administrative control and to ensure compliance of the said instructions.